

## AMENDED TENTATIVE RULING

Alexandra Guadalupe Venegas, et al.

v.

County of Monterey, et al.

23CV002984

### Minor's Compromise Petition

Hearing Date: September 24, 2026 (continued from August 21 and September 18, 2026)

After reviewing the Amended Minor's Compromise Petition ("Amended Petition") filed by Rose Guadalupe Romo ("Petitioner"), acting as guardian ad litem for seven-year-old Plaintiff Alexandra Guadalupe Venegas ("Plaintiff"), **PARTIES TO APPEAR** to discuss the issues raised below.

On August 19, 2026, this Court issued its Tentative Ruling, which was uncontested and is now the Court's order (the "August 19 Order"). The Court continued the hearing to September 18 and requested Petitioner file an Amended Petition that addresses all of the Court's concerns. Petitioner eventually filed the Amended Petition on September 22, 2026. However, the Amended Petition only addresses one of the six issues raised in the August 19 Order. The following issues remain:

- 1. Expenses.** Petitioner failed to accompany the Amended Petition with documents supporting her claimed expenses, specifically medical records (\$643.37), depositions (\$3,040.60), an expert (\$733.50), and filing and service of process (\$2,182.48). [Amended Petition at ¶ 13b.]
- 2. Petitioner's Declaration.** Petitioner failed to submit a declaration explaining why she is entitled to \$5,000 from Plaintiff's settlement proceeds. The mere fact that Petitioner is Plaintiff's mother and that the funds will be used for Petitioner's "immediate care" is insufficient for the Court. [Amended Petition at ¶¶ 11b(5) and Attachment 11b(6).]
- 3. Counsel's Declaration Explaining the Fee Calculation.** Counsel failed to explain how they calculated the requested \$22,667.05 fee. The Amended Petition included the same July 9, 2026, declaration of attorney Janie Ortiz-Acosta in which she attests that her office shall "receive 25% after costs for recovery on behalf of a minor." [Amended Petition at ¶ 13 and Attachment 13a.] The August 19 Order directed counsel to "provide a detailed fee calculation to help the Court understand how they arrived at the fee amount." Counsel failed to comply.
- 4. Proceeds to Other Claimants.** Petitioner failed to explain why Xandro Venegas, Erika Venegas, and Angelica Garcia (collectively, "Other Claimants") are entitled to \$30,000 from Plaintiff's gross \$110,000 in settlement proceeds. The Amended Petition states that Xandro and Erika Venegas "suffered physical and emotional injuries as a result of this incident." [Amended Petition at ¶ 6.] They also lack standing to pursue wrongful-death

claims in this case. [See Summary Adjudication Order at p. 4.] Similarly, Angelica Garcia, the mother of decedent Alejandro Venegas, Jr. (“Decedent”), lacks standing [Code Civ. Proc. § 377.60, subd. (a)] and has not shown that she was dependent on Decedent [*id.* at subd. (b)]. [See Summary Adjudication Order at 4-6.] The Amended Petition has not provided sufficient information to allow the Court to determine whether it is in Plaintiff’s best interest to receive \$30,000 less in settlement proceeds.

5. **Settlement Terms.** Petitioner failed to clarify the terms of the settlement between Plaintiff and Defendants County of Monterey and Richard Geng. [Amended Petition at ¶ 10c.] How Petitioner intends to distribute Plaintiff’s settlement funds does not address the core question. [*Ibid.*] Since Petitioner intends to allocate \$35,000 of Plaintiff’s settlement funds to her and Other Claimants, the Court still questions whether the settlement includes terms and conditions involving parties other than Plaintiff. The August 19 Order required Petitioner to submit with her Amended Petition documentation detailing the settlement’s terms between the parties. She has failed to do so.

Petitioner and counsel shall appear at the hearing on September 24, 2026, at 9:00 a.m. in Department 14 to discuss these issues. The Court is especially troubled that Petitioner and her counsel did not, let alone attempt to, address all issues raised in the August 19 Order.

#### **NOTE REGARDING TENTATIVE RULING**

This tentative ruling becomes the Court’s order, and no hearing shall be held unless a party contests. [Cal. Rules of Ct., rule 3.1308; Super. Ct. Monterey County, Local Rules, rule 7.9.] The party wishing to present oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT, AND THE HEARING WILL BE VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

#### **COURT REPORTERS AND AUDIO RECORDINGS**

The parties are advised that they are entitled to a verbatim, word-for-word record of these proceedings for purposes of any appeal. Ordinarily, an official court reporter creates such a record. However, the Court does not provide court reporters for civil proceedings such as this case. Any party who wishes may retain a privately hired court reporter to create the record.

If a party seeks a verbatim record but cannot afford a privately hired reporter, the Court may, in appropriate circumstances, make an electronic recording of the hearing. [*Family Violence Appellate Project v. Superior Court* (2026) \_\_ Cal.5th \_\_, 346 Cal.Rptr.3d 841, 862-863.] Any party seeking such a recording must notify the judicial officer no later than when the matter is called. The Court makes the recording at no charge, though fees may apply if a party later requests a copy of the recording or a written transcript.